

Amendment No. 1 to HB1471

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1909

House Bill No. 1471*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 16, Chapter 22, is amended by adding the following as a new section:

(a) There is created a pilot project expanding the eligibility of participants in the drug court treatment program in the first, second, and third judicial districts who are referred to the Northeast Tennessee Regional Recovery Center.

(b) For purposes of the pilot project, the presiding judge of the drug court treatment program for the first, second, and third judicial districts has discretion in determining the eligibility of participants in the drug court treatment program who are referred to the Northeast Tennessee Regional Recovery Center. Notwithstanding § 16-22-103 and § 16-22-113(1) to the contrary, when determining eligibility of participants in the drug court treatment program pilot project, "violent offender" means a person who:

(1) Has been convicted of a felony offense within the previous ten (10) years, during which:

(A) The person carried, possessed, or used a firearm or dangerous weapon;

(B) There occurred the death of or serious bodily injury to any person; or

(C) The person committed a felony involving the use of force against the person of another; and

(2) Has one (1) or more prior convictions for a felony crime of violence involving the use or attempted use of force against a person with the intent to cause death or serious bodily harm.

(c) In determining whether a defendant is a "violent offender" under subsection (b), the court shall not consider whether one (1) or more of the circumstances described in subdivision (b)(1) is or is not an element of the offense for which the person is convicted.

(d) The pilot project created by this section expires on June 30, 2028.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.